SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1020 of 2010 (YEAR: 2010)

CORAM: K.G. BALAKRISHNAN, P. SATHASIVAM, J.M. PANCHAL

Rangappa
... Appellant(s) / Petitioner(s)
Versus
Sri Mohan
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 139 NI Act

JUDICIAL HEADNOTE & SUMMARY

Three-judge bench held that the presumption mandated by Section 139 NI Act indeed includes the existence of a legally enforceable debt.

RATIO DECIDENDI

The Court held that: Three-judge bench held that the presumption mandated by Section 139 NI Act indeed includes the existence of a legally enforceable debt. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Rangappa v. Sri Mohan (Criminal Appeal No. 1020 of 2010) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 139 NI Act. Three-judge bench held that the presumption mandated by Section 139 NI Act indeed includes the existence of a legally enforceable debt.

OPERATIVE ORDER

ORDER: Decided